

**FEDERAL BUREAU OF INVESTIGATION****FINANCE DIVISION | PROCUREMENT SECTION****JUSTIFICATION AND APPROVAL (J&A) FOR OTHER THAN
FULL AND OPEN COMPETITION**

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION IN ACCORDANCE WITH
TITLE 41 U.S.C. 3304 (A) (1)

LESS THAN THE SIMPLIFIED ACQUISITION THRESHOLD (SAT)

Requisition Number: SHOP-PR-25-001713

Date: 26 March 2025

Estimated Contract Dollar Value:

1. Identification of the agency and contracting activity.

The U.S. Department of Justice (DOJ), Federal Bureau of Investigation (FBI), Procurement Section (PS), National Acquisition Programs Unit (NAPU), has prepared this justification for other than full and open competition for the acquisition of Gentueri Custom GenPouch pouches on behalf of the Federal DNA Database Unit (FDDU), Biometrics Analysis Section (BAS), Laboratory Division (LD).

2. The nature and/or description of the action being approved, i.e., sole source, limited competition, establishment of a new source, etc.

A one-time, sole source, firm-fixed price purchase order shall be awarded to Gentueri, Inc., [CAGE Code 7BL81], 312 Locust Drive, Verona, Wisconsin, 53593-2215 for the procurement of GenPouch Custom, multi-barrier, tape closure envelopes. This will allow the Federal DNA Database Unit (FDDU) to continue to store and process the high quantity of DNA samples being submitted to the FBI's Laboratory Division (LD).

3. A description of the supplies or services required to meet the agency's needs.

The Federal DNA Database Unit (FDDU) is currently receiving DNA samples from federal convicted offenders, federal arrestees, and non-US citizen detainees. To efficiently process the samples being submitted to the FDDU, the program has a need to acquire custom multi-barrier envelopes. The purchase of these custom, (clear on the long side), pouches/envelopes will allow the FDDU to keep pace with the high amount and potential increase of samples requiring analysis and storage. The envelopes will be utilized to archive the DNA Samples and provide better visibility of the bar-coded FTA cards and RFID tags. Without the clear side, the FDDU would be required to mark the non-FTA pouches with a red stripe to distinguish them from the FTA cards and the accuracy of the RFID tag will be diminished. The FDDU protocol would also require barcodes on both the cards and the pouches, resulting in a negative effect on

the throughput of the FDDU samples. The FDDU requires a specific custom size of these envelopes to allow for efficient storage space in the FDDU's Lektriever Systems, (i.e., Model SYS 120-2211). Currently, the FDDU has an urgent need for these specific envelopes, due to the increasing receipt of the type of DNA that must be stored in the custom envelopes. The U.S. Department of Homeland Security (DHS) Initiative has resulted in triple the number of samples than the FDDU historically received, which caused the stock of these pouches to decrease exponentially.

The GenPouch pouches will be shipped to the FBI Laboratory Building, Quantico, Virginia, 22135 on a quarterly basis over a one (1) year period of performance (POP). There is an anticipated six (6) to eight (8) week lead time. If there is a delay in acquiring these custom envelopes that will stop FDDU from accomplishing its mission for an unknown amount of time, which could create a longer backlog and delays in the DNA analysis process.

4. The statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.302-1 entitled, *"Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."*

5. Demonstrate the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

The Gentueri Custom GenPouch envelope has been utilized by the FBI's Laboratory for several years. Market research and testing was conducted and while other vendors may provide comparable products, only Gentueri has provided envelopes that meet the specific FDDU requirements. Gentueri has developed this custom pouch and can provide the envelopes in a timely manner. Gentueri can produce these pouches/envelopes quickly with a shorter lead time, thus saving the FBI a substantial amount of money and time compared to previous pouches used. The long-term storage pouches must be:

- At least 3 inches by 3.125 inches on the inside to hold stain cards and one (1) RFID tag.
- The dimensions of the pouch must not exceed 4.5 inches by 3.75 inches.
- Must have see-through visibility on the long side.
- Must have long-term storage durability.
- Must only have foil on the short side.
- Tape closure.
- No perforations.

The FBI awarded Purchase Order (PO) Number 15F06724P0000745 to Gentueri, Inc. on May 13th, 2024, for GenPouch Custom Pouches.

The Gentueri GenPouch is Made in the USA.

Gentueri, Inc. is a small business.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.

A Notice of Intent (NOI) to award a sole-source Purchase Order (PO) to Gentueri, inc. will be posted on the SAM.gov website. This announcement will also give an opportunity for other vendors to demonstrate their ability to meet the FBI's specific needs through a submission of their technical capabilities and cost information for consideration prior to an award being issued.

7. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Prior to issuing an award, the Contracting Officer will determine that the proposed price is fair and reasonable in accordance with FAR 13.106-3.

8. A description of the market research conducted and the results.

Market research and testing was conducted and while other vendors may provide comparable products, Gentueri can provide envelopes that meet FDDU's specific technical requirements. The Gentueri custom envelopes have been evaluated and have proven to meet the current high volume need of the FDDU.

The required envelopes must be the dictated size and layout and only Gentueri has the envelopes already designed and available for distribution. If the FDDU fails to obtain these pouches, the Unit will need to approach other vendors to provide a compatible pouch and repeat testing with the RFID tags, costing valuable time and hindering the check-in process. Gentueri Custom GenPouch pouches will be used in accordance with the FDDU's Procedures Manual. The Gentueri custom envelopes have been evaluated and have proven to meet the current high volume need of the FDDU, thus saving the FDDU time and a substantial amount of money compared to previous pouches used. The recommended source for the purchase of the custom multi-barrier pouches is Gentueri. FBI Laboratory personnel reached out to several companies for samples and only the envelope from Gentueri, Inc., meets the Government's technical requirements.

9. Any other facts supporting the use of other than full and open competition.

See section 5 above.

10. A listing of any sources that expressed a written interest in the acquisition.

A synopsis will be posted on the SAM.gov website. This synopsis will give an opportunity for other vendors to demonstrate their ability to meet the FBI's specific needs through a submission of technical capabilities and cost information.

11. A statement of any actions the agency may take to remove or overcome any barriers to competition if subsequent acquisitions are anticipated.

The FBI will continue to conduct market surveys and research available through industry shows and technology releases in the form of papers and journals. This will be used to identify potential sources for

subsequent acquisitions. If potential sources are identified, it will be necessary to submit to both extended compatibility and validation studies if the products are to be added to the FDDU laboratory process. The FBI Laboratory holds itself to the highest standards within the forensic community and ensures that any technology used is proven, tested technology.

Reviews and Approvals (up to \$750,000.00)

Requestor:

I certify that the facts and representations under my cognizance, which are included in this justification, and which form a basis for this justification, are complete and accurate.

Management and Program Analyst
CODIS Unit, BAS Business Office
Quantico, Virginia

Date

Contracting Officer:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Bryan Lane
NAPU – Quantico, Virginia
bvlane@fbi.gov

Date